

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 22-17

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BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

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**OPPOSITION TO MOTION FOR PROTECTIVE ORDER**

Seafrigo USA Inc. (Seafrigo”) hereby files its Opposition to Bakerly’s Motion for a Protective Order which motion seeks to preclude Seafrigo from taking depositions in the case. Although the deposition notices were issued on short notice, following the Presiding Judge’s entry of an Amended Scheduling Order, the depositions are scheduled to be completed by the April 3, 2023 Close of Discovery deadline provided for in that Order. Such depositions are needed to provide clarity to the Presiding Judge and the Commission regarding the longstanding practice between the parties whereby Bakerly either paid (or promised to pay) demurrage and detention charges paid by Seafrigo to steamship lines or marine terminal operators on Bakerly’s behalf before filing this action. The depositions are also needed to streamline the issues arising out of the over 800 shipments at issue in the proceeding.

In accordance with the Presiding Judge’s Order of January 12, 2023, the parties filed a joint status report. Therein, the jointly sought an extension of the existing discovery deadline given that the dispute involved over 800 shipments handled by Seafrigo on behalf of Bakerly and that during

the time allotted for discovery, the parties had resolved more than \$670,000 in claims previously in dispute. The Presiding Judge denied the request for a 60-day extension but modified the existing scheduling order so as to provide for the close of discovery on April 3<sup>rd</sup>.

Recognizing the need for depositions in such a document-intensive proceeding, Seafrigo on March 28, 2023 issued deposition notices for a corporate representative of Bakerly and for two named individuals.<sup>1</sup> The depositions were noticed to occur and be completed by the April 3, 2023 discovery deadline.<sup>2</sup>

The Commission Rules provides that a party may depose any party without leave of the presiding officer. 46 C.F.R. Section 502.143(a). No deadline is set forth in the Rules regarding how much advance notice must be provided except that it should provide reasonable notice. 46 C.F.R Section 502.143(b).

As the Second Circuit has recognized, the Federal Rules of Civil Procedure do not require any specific minimum notice period; all that is required is that the notice be reasonable under the circumstances. *F.A.A. v. Landy*, 705 F.2d 624, 634 (2d Cir. 1983). In that regard, the court noted that while six days is at the shorter end of the spectrum of reasonable notice, even four days' notice of deposition is not unreasonable as a matter of law. It is also well settled that “the reasonableness of notice must be determined in light of the facts and circumstances of the individual case.” *Fu v. Consolidated Edison Company of New York, Inc.*, 2018 WL 4373995, at \*4–5 (S.D.N.Y. 2018).

Seafrigo submits that the notice provided here was reasonable given the circumstances and that Bakerly’s suggestion that the deposition notices must be quashed because they were not issued

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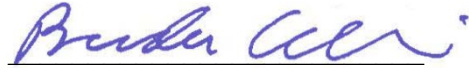
<sup>1</sup> No documents were sought pursuant to the deposition notices.

<sup>2</sup> Recognizing the relatively short time for the depositions to be taken, Seafrigo offered to take them later in that week, or even in the following week, which presumably would not be problematic as long as they did not interfere with the Presiding Judge’s briefing schedule.

either 35 days ago or perhaps 14 days ago is baseless. (Bakerly also mistakenly (and repeatedly) asserts that deposition notices issued on March 28, 2023 for depositions to be taken six days later only provide four days' notice.)

For the reasons set forth therein, Bakerly's Motion for Protective Order should be denied.

Respectfully Submitted:



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*Attorney for Respondent, Seafrigo USA Inc*

March 29, 2023

**CERTIFICATE OF SERVICE**

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the parties to this proceeding by depositing same in the United States mail, first class postage prepaid, and/or via email transmission, this 29th day of March, 2023.

A handwritten signature in blue ink, appearing to read "Brendan Collins", is written over a horizontal line.

Brendan Collins